

Sample Rubric—Practice Essay #2

This is a sample model of how a rubric for this question might be structured.

_____ issue statement (1)

_____ rule for summary judgment (3)

_____ no genuine dispute of material fact/entitled to judgment as a matter of law (1)

_____ view facts in light most favorable to non-moving party/draw inferences (1)

_____ look to relevant substantive law to determine what is material (1)

_____ Summary Judgment Analysis (22) [can structure either with 3-prong test, seen from each side; or the 2 motions for summary judgment, working through the 3-prong test for each side; the key is analyzing both sides, for all three prongs]

_____ Retaliation for Reporting (6)

_____ certainly reported Dr. Wilder (1)

_____ if jury credits the clinic's testimony, no retaliation (2)

_____ but in the light most favorable to Dr. P., timing might be just enough to infer retaliation, though this is a close call (3)

_____ Intentional (10)

_____ intentionally moved her to basement (1)

_____ but that likely wouldn't be enough on its own for "intolerable," as a matter of law (1)

_____ so Dr. P. also needs to show the loss of clients was intentional (1)

_____ if jury credits clinic, loss of clients was not their action (2)

_____ but in the light most favorable to Dr. P., the timing of loss of clients; plus the fact that she used to have lots, then went to none; plus the fact that her colleagues remained busy; and the fact that her clients returned, and drove farther—might all be just enough to infer intentional action (5)

_____ Intolerable (6)

_____ no change in pay (1)

_____ but close to no meaningful work? (2)

_____ basement is exacerbating factor (1)

_____ identify that this is a close call/identify that this is a question not about what factually happened, but about whether, as a matter of law, the things that happened meet the “intolerable” standard (1)

_____ potentially need a jury to resolve the “reasonable” person standard? (1)

_____ Conclusion (2)

_____ conclusion about clinic’s motion

_____ conclusion about Dr. P’s motion

_____ **Total out of 28**